

VENDOR NON-DISCLOSURE AGREEMENT

Parties

Company: _____

Vendor: _____

Purpose

The Company intends to share certain confidential information with the Vendor in connection with evaluating, negotiating, or carrying out a potential supply, procurement, or vendor relationship (the "Purpose"):

Description of Purpose: _____

Confidential Information

"Confidential Information" means any business, technical, financial, or other information disclosed by the Company to the Vendor in connection with the Purpose, including specifications, pricing, forecasts, business plans, and supplier or customer information, whether disclosed orally, in writing, or in any other form, and whether or not marked as confidential.

Vendor's Obligations

The Vendor agrees to keep the Confidential Information confidential, to use it only for the Purpose, and not to disclose it to any third party without the Company's prior written consent. The Vendor will limit access to the Confidential Information to its employees, subcontractors, and advisors who need it for the Purpose and who are bound by confidentiality obligations at least as protective as those in this Agreement.

Exclusions

Confidential Information does not include information that is or becomes publicly available through no fault of the Vendor, was already lawfully known to the Vendor before disclosure, is independently developed by the Vendor without use of the Confidential Information, or is lawfully received from a third party without restriction.

No License or Commitment

Nothing in this Agreement obligates the Company to enter into any further business relationship with the Vendor, and nothing grants the Vendor any license or rights in the Confidential Information beyond the limited use permitted for the Purpose.

Term

This Agreement is effective as of ____ / ____ / ____ and the Vendor's confidentiality obligations will continue for _____ after that date, or until the Confidential Information no longer qualifies for protection under the Exclusions above, whichever comes first.

Return or Destruction of Materials

Upon the Company's written request, or upon completion of the Purpose, the Vendor will promptly return or destroy all materials containing Confidential Information and confirm that it has done so.

Remedies

The Vendor acknowledges that unauthorized disclosure of Confidential Information may cause the Company irreparable harm for which monetary damages alone may not be an adequate remedy, and that the Company may seek injunctive relief in addition to any other remedies available at law.

Governing Law

This Agreement shall be governed by the laws of the State/Country of _____, without regard to its conflict-of-law principles.

Signatures

Company Signature: _____

Name: _____

Date: ____ / ____ / ____

Vendor Signature: _____

Name: _____

Date: ____ / ____ / ____